

24NNCV03568 24NNCV03568

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[TENTATIVE] ORDER DENYING DEFENDANT GM'S MOTION FOR SUMMARY ADJUDICATION

I. INTRODUCTION

In this lemon law action, Plaintiff Joshua Cauthen ("Plaintiff") alleges that, on or about May 17, 2023, he entered into a warranty contract with Defendant General Motors, LLC ("GM" or "Defendant") concerning a 2024 GMC Sierra 2500 Denali ("Subject Vehicle"). Plaintiff alleges that Defendant breached its warranty obligations after the Subject Vehicle developed various defects. The operative Second Amended Complaint ("SAC") asserts a single cause of action for violation of the Magnuson-Moss Warranty Act ("MMWA").

On February 17, 2026, Plaintiff filed the SAC. On May 28, 2026, Defendant filed the instant motion for summary judgment. The motion is unopposed.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) CCP Section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

III. ANALYSIS

GM moves for summary judgment on Plaintiff's SAC. GM argues that it is entitled to summary judgment on Plaintiff's sole cause of action for violation of the MMWA because an MMWA claim cannot stand independently from an underlying state-law warranty claim. According to GM, because Plaintiff abandoned his SBA claims and the SAC does not assert any separate state-law cause of action for breach of warranty, there is no state-law claim upon which Plaintiff's MMWA claim may be based. (MSJ, pp. 5-6.)

GM cites Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, Clemens v. DaimlerChrysler Corp. (9th Cir. 2008) 534 F.3d 1017, and Birdsong v. Apple, Inc. (9th Cir. 2009) 590 F.3d 955, among other authorities, for the proposition that an MMWA claim is dependent upon a viable claim for breach of warranty under applicable state law. Specifically, GM relies on Daugherty for the principle that the MMWA "calls for the application of state written and implied warranty law, not the creation of additional federal law," and Clemens for the proposition that MMWA claims "hinge on the state law warranty claims."

Here, although the SAC does not separately assert a state-law cause of action for breach of warranty, Plaintiff alleges that he entered into a warranty contract with GM concerning the subject vehicle and that the warranty contract included bumper-to-bumper, powertrain, and emission warranties. (SAC, ¶¶ 6-7.) Plaintiff further alleges that he purchased the vehicle new from GM's authorized dealership in Florida. (SAC, ¶ 8.) Plaintiff further alleges that he is entitled to damages resulting from "GM's breach of its warranty contract" pursuant to California Commercial Code section 2714, subdivision (1), "and/or Florida Statutes sections 681.104 and 681.112." (SAC, ¶ 22.)

These allegations, however, do not amount to a separately pleaded state-law warranty claim. As Daugherty explains, "failure to state a warranty claim under state law necessarily constituted a failure to state a claim under the Magnuson-Moss Act." (Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 833.) Although Plaintiff cites California Commercial Code section 2714, subdivision (1), that provision concerns a buyer's remedies for an established breach of warranty; it does not itself supply a substantive cause of action for breach of warranty. Plaintiff's citation to section 2714 as a basis for damages therefore does not establish the underlying state-law warranty claim necessary to maintain an MMWA claim.

However, as to Florida Statutes sections 681.104 and 681.112, the SAC expressly identifies those provisions as an alternative state-law basis for Plaintiff's warranty claim. (SAC, ¶ 22.) GM's motion does not address whether Plaintiff sufficiently states a claim under these Florida statutes or otherwise establish that Plaintiff cannot obtain relief under Florida law. Instead, GM's motion rests on the premise that Plaintiff's MMWA claim necessarily fails because Plaintiff abandoned his Song-Beverly claims. As the Court previously determined, however, Plaintiff may potentially maintain an MMWA claim based on a violation of state law other than Song-Beverly. (3/27/26 Minute Order.) Whether Plaintiff has sufficiently pleaded a viable claim under Florida law is not addressed by the instant motion.

Based on the foregoing, GM has not met its initial burden of demonstrating that Plaintiff's sole MMWA claim fails as a matter of law. Thus, the Court DENIES GM's motion for summary judgment.

IV. CONCLUSION AND ORDER

The Court DENIES GM's motion for summary judgment.

GM is to give notice.

Dated: September 18, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT